

1 ENGROSSED SENATE
2 BILL NO. 1980

By: Logan of the Senate

3 and

4 Turner of the House

5
6 An Act relating to crimes and punishments; defining
7 terms; creating certain offenses related to gift
8 cards and gift certificates; providing for penalties;
9 providing for codification; and providing an
10 effective date.

11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1740.3 of Title 21, unless there
14 is created a duplication in numbering, reads as follows:

15 A. For the purposes of this section:

16 1. "Cardholder" means any person to whom a physical or virtual
17 gift card or gift certificate is issued through a purchase or who
18 receives a gift card or gift certificate from another;

19 2. "Gift card" means card, code, or device that is issued to a
20 consumer on a prepaid basis primarily for personal, family, or
21 household purposes in a specified amount, regardless of whether that
22 amount may be increased or reloaded in exchange for payment and that
23 is redeemable upon presentation at a merchant or multiple merchants.
24 It includes closed-loop gift cards that are redeemable at a single

1 merchant or group of affiliated merchants and open-loop gift cards
2 that are redeemable at multiple unaffiliated merchants for goods or
3 services within the payment card network;

4 3. "Gift certificate" means a written promise that is issued in
5 a specified amount, indicated on its face, and cannot be increased
6 in value, is usable to purchase goods or services only at a single
7 merchant or multiple merchants, and is purchased by a consumer on a
8 prepaid basis in exchange for payment;

9 4. "Issuer" means a person or entity, or agent thereof, who
10 issues gift cards or gift certificates to consumers;

11 5. "Redemption information" means information unique to each
12 gift card or gift certificate; and

13 6. "Value" means the greatest amount of economic loss the owner
14 of the property might reasonably suffer.

15 B. 1. Any person who, with intent to defraud, acquires or
16 retains possession of a gift card, gift certificate, or redemption
17 information without the consent of the cardholder or issuer shall,
18 upon conviction, be guilty of larceny punishable pursuant to Section
19 1702 of Title 21 of the Oklahoma Statutes.

20 2. Any person who, with intent to defraud, alters or tampers
21 with a gift card, gift certificate, or the packaging of such items
22 shall, upon conviction, be guilty of forgery in the third degree
23 punishable pursuant to paragraph 3 of Section 1621 of Title 21 of
24 the Oklahoma Statutes.

1 3. Any person who, with intent to defraud, devises a scheme to
2 obtain the redemption information to a gift card or gift certificate
3 from a cardholder or issuer by means of false or fraudulent
4 pretenses, representations, or promises shall, upon conviction, be
5 guilty of fraud punishable pursuant to Section 1541.1 of Title 21 of
6 the Oklahoma Statutes.

7 4. Any person who, with intent to defraud, uses, for the
8 purpose of obtaining money, goods, services, or anything else of
9 value, a gift card or gift card redemption information that has been
10 obtained in violation of paragraph 1 or 2 of this subsection shall,
11 upon conviction, be guilty of larceny punishable pursuant to Section
12 1702 of Title 21 of the Oklahoma Statutes. If the value of all
13 money, goods, services, and other things of value obtained in
14 violation of this paragraph exceeds Nine Hundred Fifty Dollars
15 (\$950.00) in any consecutive six-month period, the person shall,
16 upon conviction, be guilty of grand larceny punishable pursuant to
17 Section 1705 of Title 21 of the Oklahoma Statutes.

18 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the Senate the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives